

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

July 26, 2021

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 12:00 p.m. in Council Chambers and via electronic conference meeting. Present were: MAYOR – Patrick Collins, COUNCIL MEMBERS – Dr. Michelle Aldrich, Ken Esquibel (via Zoom), Bryan Cook, Richard Johnson (via Zoom), Pete Laybourn, Dr. Mark Rinne (joined via Zoom at 12:06 p.m.), Scott Roybal, Tom Segrave and Jeff White. Also present: Kylie Soden, Deputy City Clerk.

Following the pledge of allegiance, Mayor Collins called for a moment of silence for Senator Mike Enzi related to injuries recently sustained in a serious bicycle accident.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Roybal moved to approve, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on July 12, 2021. Motion (per Consent Agenda) carried.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from July 12, 2021). Reporting for Public Services Committee, Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Laybourn advised that following the Laramie County Board of Commissioner’s meeting on July 20, 2021, the plat was reconsidered but not approved. Mr. Laybourn moved to postpone indefinitely, seconded by Mr. Segrave. Mayor Collins explained the indefinite postponement essentially kills the item, therefore requiring it to come back before the governing body in the future. Motion to postpone indefinitely carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County AR Agricultural Residential to MR Medium-Density Residential for land located southwest of the intersection of Braehill Road, Parkhill Road, and Panorama Drive (Postponed from July 12, 2021). Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Cook. Mr. Laybourn advised that following the Laramie County Board of Commissioner’s meeting on July 20, 2021, the plat was reconsidered but not approved. Mr. Laybourn moved to postpone indefinitely, seconded by Mr. White. Motion to postpone indefinitely carried. Voting “yes” – all members of the governing body present.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, land located northeast of and adjacent to the intersection of Dell Range Boulevard and Whitney Road. (Postponed from July 12, 2021). Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Mr. Laybourn moved to amend by substitute dated July 16, 2021, seconded by Mr. Segrave. Mayor Collins noted the substitute includes the Dell Range Blvd. intersection on the map. Motion to amend by substitute carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. [Clerks note: Dr. Rinne joined the meeting at 12:06 p.m. during discussion and prior to the vote on this item] (#4387)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County MU Mixed Use and County LR Low Density Residential to CB Community Business, LR Low-Density Residential, and MR Medium-Density Residential for land located northeast of and adjacent to the intersection of Dell Range Boulevard, west of Whitney Road (Postponed from July 12, 2021). Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Motion carried. Voting “yes” – all members of the governing body. (#4388)

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road. Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body. (#4389)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from County X (Exempt) to SS (Support Services) for a portion of the S½ of Section 35, and a portion of the SW¼ of Section 36, T14N, R67W, Laramie County, Wyoming generally located southwest of Interstate 25 and Happy Jack Road. Mr. Laybourn moved to approve on third and final reading, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body. (#4390)

ORDINANCE – 3rd READING – Amending the Official Zoning Map of the City of Cheyenne changing the zoning classification from MR Medium-Density Residential to NR-2 Neighborhood Residential-Medium Density for land located northwest of the intersection of Country Club Avenue and Snyder Avenue. Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Upon inquiry, Charles Bloom, Planning and Development Director, reported the zone change request is affiliated with several different applications and multiple variances were being considered by the Board of Adjustment including a reduction of parking, necessary setbacks and access of which several elements were denied. Mr. Bloom advised work with the developer is ongoing to redo the site plan and plat. He noted they are still recommending approval of the zone change to NR-2 as they believe it is the correct zoning for the neighborhood and will allow for existing development to continue and for future redevelopment. Upon further inquiry, Mr. Bloom explained the developer will be retaining the existing building and improving the gravel parking lot and noted they are proposing 4 new townhouse units along Snyder Ave. Mr. Bloom advised the Board of Adjustment denied the request for 3 of the

townhouse units to have rear access and 1 to have a driveway access on Snyder. During discussion related to comments and concerns of area neighbors, Mayor Collins noted he had received a records request for information related to the project and comments were received related to drainage concerns and support for the added units but concerns with the space restraint. Mayor Collins advised he met with the developer's representative and they are aware of drainage issues and are working on an engineering solution. Upon inquiry, Mr. Bloom advised zoning in the area is MR (Medium Density Residential) and is complementary to the requested NR-2 zoning classification. Motion carried. Voting "yes" – all members of the governing body. (#4391)

ORDINANCE – 3rd READING – Amending the Unified Development Code (UDC) to create a Public Safety Fee requirement for residential, commercial, service, industrial, civic, public service, employment, agriculture, and other development in the city. Charles Bloom, Planning and Development Director, advised he met with members of the Southeast Wyoming Home Builders Association and although they aren't totally in support of the ordinance, they do agree this is an important first step and the ordinance will need to be revisited in the future. Future review will involve the association and review of the fees to make sure they are accurate. Mr. Bloom noted the fees will be for public safety infrastructure and not an offset to the Fire or Police Department's general operating costs. Mayor Collins expressed appreciation to the Southeast Wyoming Home Builders Association for their contributions related to the ordinance. Mr. Laybourn moved to approve on third and final reading, seconded by Mr. Segrave. Comment was made related to the need to be able to maintain and provide public safety services in all areas of the community and appreciation was expressed to Mr. Bloom and the Southeast Wyoming Home Builders Association for working on the ordinance. Motion carried. Voting "yes" – all members of the governing body. (#4392)

ORDINANCE – 3rd READING – Amending Section 2.76.020, Members-Term-Vacancies, of Chapter 2.76, Downtown Development Authority, of Title 2, Administration and Personnel, of the Code of the City of Cheyenne, Wyoming. Mr. Laybourn moved to approve on third and final reading, seconded by Dr. Aldrich. Comments were made regarding improvements that have been made downtown and the importance of the ordinance for streamlining downtown efforts. Motion carried. Voting "yes" – all members of the governing body with the exception Mr. Johnson voting "no". Mayor Collins noted that due to the ordinance change, applications for the board will be accepted for appointment. (#4393)

[CA] RESOLUTION – Authorizing the City of Cheyenne Community Recreation and Events Department to submit a proposal to apply for an Office of Local Defense Community Cooperation, Department of Defense, Defense Community Infrastructure Program Grant to build an indoor sports complex to support the military family quality of life Infrastructure of Francis E. Warren Air Force Base Service Members and their families. Motion (per Consent Agenda) carried. (#6163)

[CA] RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Waterford Square 3rd Filing, a replat of Lots 28 & 29, Block 7, Lots 1 & 31, Block 5 and a portion of Tray More Boulevard and adjacent alleys, Waterford Square, City of Cheyenne, Laramie County, Wyoming (located south of the intersection of Tray More Boulevard and Waterford Boulevard). Motion (per Consent Agenda) carried. (#6164)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a final plat for Sweetgrass, 7th Filing, a subdivision of a portion of the N½ of Section 16, Township 13 North, Range 66 West of the 6th P. M., City of Cheyenne, Laramie county, Wyoming (located south of East College Drive and adjacent to Sweetgrass Drive). Mr. Laybourn moved to adopt, seconded by Mr. Segrave. Mr. Laybourn moved to postpone until August 9, 2021, seconded by Mr. Segrave. Upon inquiry, Charles Bloom, Planning and Development Director, explained the reason for the postponement is to review a new plat that was submitted by the agent for the owner. Motion to postpone carried. Voting “yes” – all members of the governing body.

[CA] RESOLUTION – Authorizing a one-time payment given to the full-time and permanent part-time employees of the City of Cheyenne (excluding elected officials and employees of the Cheyenne Board of Public Utilities) from funds received from the Coronavirus State and Local Fiscal Recovery Fund Established by the American Rescue Plan Act of 2021 – referred to Finance Committee. (Sponsors – Dr. Aldrich, Mr. Cook, Mr. Esquibel, Mr. Roybal, Mr. Segrave, and Mr. White.)

[CA] Memorandum of Understanding between Laramie County, Wyoming, and the City of Cheyenne, Wyoming, for EOD, SWAT, and CNU operations and extraterritorial law enforcement assistance and activities. Motion (per Consent Agenda) carried. (#7376)

[CA] Agreement between the City of Cheyenne and SpyGlass Group, LLC, Westlake, OH, for communications services auditing. Motion (per Consent Agenda) carried. (#7377)

[CA] Merchant Agreement between the City of Cheyenne and RecTrac, LLC d/b/a Vermont Systems, for credit card processing of Recreation related services. Motion (per Consent Agenda) carried. (#7378)

[CA] Grant of Access Easement and Temporary Construction Easement on City owned Property, Tract U, Sweetgrass, 2nd Filing, between the City of Cheyenne and Sweetgrass Land Co., LLC - referred to Finance Committee.

[CA] Agreement between City of Cheyenne, Office of Youth Alternatives, and Laramie County, Wyoming for juvenile probation services (revenue to the City) -- referred to Finance Committee.

Contract Modification #1 to Contract #7231 between the City of Cheyenne and Burns and McDonnell for a force majeure for additional architectural and inspection services for the Landfill Front Entrance and Scale House Construction Support Project (Solid Waste Fund). Reporting for Finance Committee, Mr. Roybal advised there was no recommendation from committee. Mr. Roybal moved to approve in an amount not to exceed \$38,937.00, seconded by Mr. Segrave. Comments were made relating to the possibility of rebidding the project. Upon inquiry, Craig LaVoy, Deputy Director of Public Works, explained the contract is for the project design and the consequence of requesting a new bid proposal is the project would be shut down. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Aldrich and Mr. Esquibel voting “no”. (#7231)

[CA] Contract Modification #3 to Contract #6625 between the City of Cheyenne and Western Research and Development, Ltd., for additional design services for the 2018 On Call Traffic Engineering Services Project (2015-2018 1% Sales Tax). Motion (per Consent Agenda) carried (in an amount not to exceed \$35,194.51). (#6625)

[CA] Consideration of Bid #E-40-21 for a contract between the City of Cheyenne and Goat Green, LLC, for providing vegetation management for Dry Creek and Crow Creek, for the City of Cheyenne Engineering Department (2019-2022 1% Sales Tax) -- referred to Finance Committee.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointment of Julie Torres to the Laramie County Juvenile Services Joint Powers Board. Mr. Roybal moved to approve, seconded by Dr. Aldrich. Motion carried. Voting “yes” – all members of the governing body with the exception of Mayor Collins who did not vote (mayoral appointment).

Announcement was made of Public Hearing to be held August 9, 2021 at 6:00 p.m. in City Council Chambers, 2101 O’Neil Avenue, Cheyenne, Wyoming, and via electronic conference meeting, to receive comments and input for the Hitching Post Urban Renewal Plan and Project, as required by Wyoming Statute §15-9-109, for land generally located northwest of West Lincolnway and Stinson Avenue.

Under other business:

Mayor Collins noted that at the July 12, 2021 City Council meeting, the motion to approve the Memorandum of Agreement between Robin and Debbie Courtier, the City of Cheyenne, and the Wyoming Department of Transportation for the study of downstream water problems was approved. He further advised WYDOT was included in the MOU as they hold the easement for the pond that is being reviewed, but that the Attorney General is uncomfortable signing the agreement. Mayor Collins advised he would like a motion to reconsider the agreement to remove WYDOT and they will do a direct agreement with the city on the modification of their easement. Mr. Segrave, having voted on the prevailing side and pursuant to City Code Chapter 2.04, moved to reconsider the Memorandum of Agreement between Robin and Debbie Courtier, the City of Cheyenne, and the Wyoming Department of Transportation for the study of downstream water problems, seconded by Dr. Aldrich. Motion to reconsider carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Mr. Segrave moved to amend by substitute dated July 23, 2021, seconded by Dr. Aldrich. Mayor Collins advised the only change in the substitute is the removal of WYDOT as a signatory of the agreement making the agreement between the city and the Courtiers only. Upon inquiry, Michael O’Donnell, City Attorney, advised the Attorney General’s office has communicated concerns related to the agreement during a meeting and via email noting they aren’t comfortable signing the agreement in its original format. Upon request for more information on the project, Mayor Collins noted he will look into scheduling an informational work session. Concern was raised about WYDOT being removed

from the agreement. Mayor Collins described issues with the original agreement and noted he has received assurance that all parties want to be involved with the project. Motion to amend by substitute carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. Appreciation was expressed to the governing body for their consideration to remedy the situation. Main motion as amended carried. Voting “yes” – all members of the governing body with the exception of Mr. Cook, Mr. Johnson and Dr. Rinne voting “no”. (#7374)

Dr. Aldrich expressed appreciation to Mr. Laybourn and the DDA for their beautification efforts in the downtown area. She further thanked Jason Sanchez, Deputy Director of Community Recreation and Events, and his staff for their assistance with Fridays on the Plaza and city staff for their efforts downtown.

Mr. Laybourn noted the extra effort downtown was not unnoticed. He further expressed appreciation to Public Works for the median clean-up by Little America. Mayor Collins advised the median clean-up was a joint effort between Public Works and Community Recreation & Events. Mayor Collins further expressed appreciation to city employees for their efforts in keeping the city safe and appealing.

Mr. Johnson noted the recent passing of Bill Dubois, local historian, and expressed appreciation for all he did for the community.

There being no further business to come before the governing body, the meeting was officially adjourned at 12:44 p.m.

Submitted by,

Kylie Soden, CMC
Deputy City Clerk

This notice is available in alternative, accessible formats upon request.

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